

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

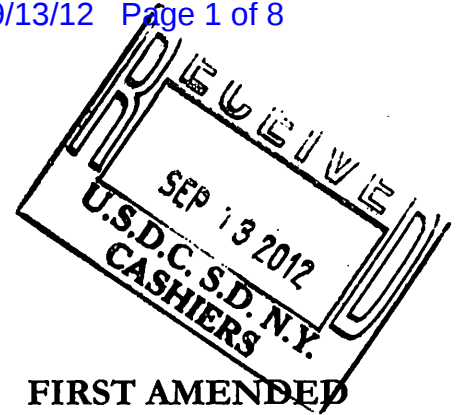
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FRANCES ANDRADES,

Plaintiff,

-against-

Detective MICHAEL SMYTH, Shield No. 420;
Detective JAMES BARRY, Shield No. 1460;
Detective DAVID ROJAS, Shield No. 4393;
Sergeant OVANDO PATRICI; and JOHN and
JANE DOE 1 through 10, individually and in their
official capacities (the names John and Jane Doe
being fictitious, as the true names are presently
unknown),

Defendants.
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**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

12 CV 3880 (BSJ)

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Frances Andrades (“plaintiff” or “Ms. Andrades”) is an 18 year-old female and a resident of Bronx County in the City and State of New York.

7. Defendant Police Detective Michael Smyth, Shield No. 420 (“Smyth”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Smyth is sued in his individual and official capacities.

8. Defendant Police Detective James Barry, Shield No. 1460 (“Barry”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Barry is sued in his individual and official capacities.

9. Defendant Police Detective David Rojas, Shield No. 4393 (“Rojas”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Rojas is sued in his individual and official capacities.

10. Defendant Police Sergeant Ovando Patrici, No. 922922 (“Patrici”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Patrici is sued in his individual and official capacities.

11. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not

know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

12. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

13. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

14. At approximately 8:00 a.m. on August 2, 2011, plaintiff was lawfully present in the lobby of 893 Crotona Park in Bronx, New York.

15. Plaintiff, at the time 17 years old, was on her way to meet her father when she was confronted by a group of officers.

16. The officers placed plaintiff and her father under arrest and administered handcuffs.

17. The officers then brought plaintiff and her father upstairs to an apartment, where they placed plaintiff's mother under arrest and executed a search warrant.

18. After approximately one hour, plaintiff was transported to the 44th Precinct.

19. At the precinct the officers falsely informed employees of the Bronx County District Attorney's Office that they had observed plaintiff in possession of marijuana.

20. At no point did the officers observe any marijuana in plain view or in any area that plaintiff was known to have access.

21. At approximately 4:00 p.m. on August 2, 2011, plaintiff was taken to Bronx Central Booking.

22. At approximately 11:30 p.m. on August 2, 2011, plaintiff was arraigned in Bronx County Criminal Court, where she was released on her own recognizance.

23. At her arraignment, plaintiff was charged with possession of marijuana.

24. After approximately fourteen hours in custody, plaintiff was released.

25. In December of 2011, after three court appearances, plaintiff's criminal charges were dismissed.

26. Plaintiff missed three days of school as a result of her arrest.

27. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of her liberty, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, humiliation, and damage to her reputation.

FIRST CLAIM
Unlawful Stop and Search

28. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

29. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

30. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

False Arrest

31. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

32. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

33. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

THIRD CLAIM

Malicious Prosecution

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of her constitutional right to be free from malicious prosecution under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

36. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of her constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

37. As a direct and proximate result of defendants' unlawful actions, plaintiff has suffered, and will continue to suffer, damages, including mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FOURTH CLAIM
Denial Of Constitutional Right To Fair Trial

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. The individual defendants created false evidence against plaintiff.

40. The individual defendants forwarded false evidence to prosecutors in the Bronx County District Attorney's office.

41. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

42. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

FIFTH CLAIM
Failure to Intervene

43. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

44. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene:

45. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

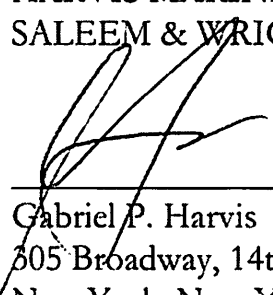
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against all defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: September 12, 2012
New York, New York

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